

See chapter I.C. "Novelty".

b) Inventive step

In T 547/88 inventive step was contested. Although the board had asked the parties to issue a joint protocol stating what **tests** had to be done and under what conditions, each party had in fact conducted its own experiments and obtained contradictory results. It was therefore not possible for the board, on the basis of these tests, to conclude definitively that no inventive step was involved. The board held that in such a case the patent proprietor should be given the **benefit of the doubt** with regard to the relevance of the claimed features to the problem to be solved. Moreover, since the prior art did not suggest the subject-matter of the contested claims, that subject-matter implied an inventive step. The patent was therefore maintained.

The burden of proving that the claimed method leads to the **advantageous effects** mentioned in the patent in suit rests with the patentee. In the absence of any corroborating evidence that these advantageous effects were obtained, the alleged effects are not to be taken into account when assessing inventive step (cf. T 97/00; see also T 1409/04).

In T 862/11 the appellant (opponent) failed to submit comparative tests in support of its own assertion that an improvement was implausible owing to the lack of any evidence. In the absence of such tests, however, it failed to convince the board, which therefore regarded the problem as solved, and saw no need to reformulate it (see also in this chapter III.G.4.2.2 "Test and experimental evidence").

The problem stated in a granted patent is deemed to have been plausibly solved by the claimed invention when there are no grounds to suspect otherwise. According to the established case law of the boards of appeal, in opposition (or any subsequent appeal) proceedings it is insufficient for the opponent to attack a granted patent with an unsubstantiated assertion. The opponent bears the burden of proving its assertion or must at least furnish evidence liable to raise doubts that the problem has indeed been solved (T 534/13, citing T 1797/09, point 2.7 of the Reasons).

In T 2320/16, the opponent (appellant) alleged, with reference to T 415/11, that the burden of proof in relation to the problem-solution approach lay with the respondent (patent proprietor). The board disagreed, holding that it was insufficient in opposition proceedings for the opponent to challenge a granted patent with an assertion which had not been substantiated. The appellant (opponent) had not submitted any evidence which cast doubt on the claimed effects.

In T 1177/17, the question arose as to whether 2-FL could, by itself, provide the claimed indirect antiviral effects by means of NK cell stimulation, as alleged by the respondent (patentee). In the board's view, it could not. There was no evidence on file to show this, the respondent not having substantiated its submissions with any evidence other than the data reported in example 1 of the patent – a study in mice vaccinated with Influvac. On the contrary, it had argued that it was down to the appellants (opponents) to demonstrate that 2-FL did not provide the claimed antiviral effects by means of NK cell stimulation.

However, in the board's view, this argument could not succeed since the technical effects invoked by the respondent were not **plausible** over the whole scope of claim 1 of the main request.

In case T. 655/13 the examining division did not precisely identify the passage of document D1 (technical journal in Japanese as a prior art publication) which disclosed the feature in dispute and at the same time did not provide a translation of at least the referenced longer section of said Japanese document. The board recalled that in examination proceedings, as far as issues relating to patentability requirements are concerned, the burden of proof – and consequently the onus of presentation of the relevant facts – lies initially with the examining division, which must provide evidence and facts to support its objection (see T. 578/06). As a rule, the applicant can dispute in a general way a general statement made by the examining division, which then in turn is obliged to raise a more detailed objection. In order to give an applicant a fair chance to challenge the findings of the examining division, the latter should, as a rule, at least once identify where in the closest prior-art document each of the features of the claim in suit is disclosed (see e.g. the obiter dictum in T. 70/02).

See chapter I.D. "Inventive step".

c) Sufficiency of disclosure

According to established case law of the boards of appeal, a successful objection of insufficient disclosure presupposes that there are serious doubts, substantiated by verifiable facts. In inter partes proceedings, the burden of proof initially lies with the opponent, who must establish, on the balance of probabilities, that a skilled person reading the patent, using common general knowledge, would be unable to carry out the invention. This is because it is generally to be presumed that a patent relates to an invention which is sufficiently disclosed. If the opponent has discharged its burden of proof and so conclusively established the facts, the patent proprietor then bears the burden of proving the counter-arguments it puts forward to refute those facts.

The burden of proof is determined by the legal cases which the respective parties are trying to make. Whether it is discharged or not is assessed by the board based on all the relevant evidence put before it. The burden of proof of insufficiency is as a general rule on the **opponents**, who should prove that despite making all reasonable efforts they were unable to put the invention into practice. If the patentee is claiming a result, which the prevailing technical opinion suggests is not achievable, and if the opponents are not able to repeat the method in the patent, they **cannot be expected to do more than the patentee**. Then, the burden of proof is on the patentee to show that the extraction method in the patent works as stated so that at least one way of putting the invention into practice has been given to the skilled person (approach set out e.g. in T. 518/10, which in turn cited T. 792/00 and T. 1842/06).

In T. 1608/13, referring to T. 585/92, the respondent (opponent) argued that in appeal, after the opposition division had revoked the patent, the burden of proof shifted to the appellant to prove that the decision was wrong. However, the primary aim of appeal proceedings

was to review the decision under appeal on the basis of the submissions and requests of the parties. This clearly encompassed the review of the opposition division's reasoning, in particular the assessment of the respondent's objections considered in the decision. If the reasoning as such was found to be wrong, there could not be any shift of the burden of proof on the substance. As regards the latter, it was established jurisprudence that a successful objection of lack of sufficiency presupposed that there were serious doubts substantiated by verifiable facts (T 967/09). It was primarily the respondent's duty to provide such facts in support of its objections.

T 30/15 (inter partes) contains extensive reasoning on the issue of burden of proof and on the submission of evidence in respect of Art. 83 EPC in conjunction with procedural aspects (RPBA 2007) especially at the appeal stage after a first instance decision revoking the patent for insufficiency of disclosure. The board found that, once the patent was revoked, it was up to the proprietor, as the appellant, to present a detailed line of argument in its statement of grounds of appeal, even if the grounds for the contested revocation seemed no longer to apply to a new set of claims. Thus, contrary to what was claimed by the proprietor, the respondents and former opponents were under no obligation to carry on proving the insufficiency of the disclosure of the invention if that was the reason for the patent's revocation. (Compare with T 1329/11, point 3.9 of the Reasons, where the appellant was the opponent but in a case where the application as filed did not provide a single example or other technical information from which it was plausible that the claimed invention could be carried out).

In T 1886/12, which also contains reasoning on the issue of burden of proof concerning alleged insufficiency of disclosure, the appellant (opponent) raised several objections but did not discharge the burden of proof.

In T 275/16 the board recalled that the burden of proof of insufficiency of disclosure is, as a general rule, on the **opponent**. However, in the case of an invention which goes against the prevailing technical opinion, it is the patent proprietor who needs to prove that the invention is sufficiently disclosed (T 792/00, points 3 to 5 of the Reasons; T 1842/06, point 3.4 of the Reasons; T 518/10, point 7.10.1 of the Reasons; cf. T 419/12, point 1.1.4(6) of the Reasons). In the case at issue, it was the prevailing technical opinion that no processes existed which would allow the production of titanium dioxide particles in a gas phase reaction, the particles all having the same particle diameter, i.e. having a monodisperse particle size distribution. Moreover, the patent did not contain data for the contentious D_{top}/D₅₀ value of 1. It was the patent proprietor (appellant) who had to show that it was possible to arrive at a D_{top} (maximum particle diameter) / D₅₀ (median particle diameter) ratio of 1, a value explicitly claimed, when using the process disclosed in the patent in suit. The board considered the requirements of sufficiency of disclosure not met, even with a skilled person construing the patent with a mind willing to understand (cf. T 190/99).

In T 298/17 the appellant (patent proprietor) argued that the respondents (opponents) bore the burden of proving that the claimed emulsions could not be obtained but had not filed any evidence in this respect. It further argued that, as per G 9/91 and T 1003/96, it – as the patent proprietor – should be given the benefit of doubt on the issue of sufficiency of

disclosure. The board stated that it was generally accepted that opponents should bear the burden of proof on the issue of sufficiency of disclosure. However, the appellant had acknowledged the fact concerned and the respondents did not need to prove facts that the appellant did not question (**undisputed facts**).

In T.2119/14 the appellant (patent proprietor) argued that it was down to the opponents to demonstrate the undue burden for the skilled person. The board addressed the burden of proof in detail and held that, in the context of the ground for opposition of insufficient disclosure, the weight of the submissions required to rebut the legal presumption that the patent met the EPC requirement depended on the strength of that presumption (see T.63/06). A **strong presumption** required more substantial submissions than a **weak presumption**. In the case in hand, the undue burden resulted from the almost infinite number of coating compositions that fell under the structural definition given in claim 1, and from the absence of any teaching in the patent on how to meet the unusual parametric requirement. As a consequence, the onus to prove that this did not necessitate an undue amount of work rested with the patent proprietor (appellant).

In T.2218/16 (gene therapy) the board considered that, far from being a mere statement, the overall technical teaching provided in the patent amounted to a **strong presumption** of suitability, so the appellant (opponent) bore the burden of proof. Moreover, since the appellant's submissions on insufficiency were not supported by evidence, i.e. verifiable facts, the burden of proof had not been shifted to the respondent (patent proprietor). Decision T.2218/16 summarises the principles applicable to the burden of proof as regards an allegation of insufficient disclosure of the invention.

In T.2340/12, concerning the burden of proof, it was not contested that it is for the organ raising the objection of lack of sufficiency to justify its view. In **ex-parte** proceedings it is therefore up to the examining division or the board of appeal to substantiate the objection raised. Such objection should rely on concrete and verifiable knowledge or facts that question the reality of the effects provided for by the claimed invention. The lack of credibility could result, for example, from a conflict with established laws of physics. It was then for the applicant (appellant) to provide the arguments or evidence. The board remarked that the filing of experiments was **not** to be seen as **an obligation** imposed on the applicant **but**, in contrast, as a right, providing the applicant with the **opportunity to convince** that the examining division (or the board) had erred in its initial findings. In the case at issue, the invention related to fields of technology without any accepted theoretical or practical basis.

In T.2571/12 the board disagreed with the conclusions of the opposition division that, because no evidence had been provided by the opponent to show that any neuropsychiatric disorder could not effectively be treated using a glutathione precursor, the patent in suit was considered to disclose the invention in a manner sufficiently clear and complete for it to be carried out by a person skilled in the art. It was the patent that has to demonstrate the suitability of the claimed treatment for the claimed therapeutic indication.

It was decided in T.417/13 that physical and mathematical facts about particle size measurements were notorious. Therefore there was no need to discuss documents filed in order to establish the related facts.

See, for example, T.2437/13 as to how boards deal with an unsubstantiated allegation made by an opponent who bears the burden of proof.

See also chapter II.C.9. "Evidence"; T.63/06 (summary of its contribution in T.347/15), T.338/10 and T.967/09 in present chapter III.G.5.2.2.

d) Content of the priority document

In T.1147/02 the board dealt with the issue of which party to the appeal proceedings bore the burden of proving the exact content of a priority document in order to establish the relevant priority date. Since the appellant was the one to challenge the priority date necessary for establishing prior art, the principles elaborated in the case law of the boards of appeal dictated that the appellant also bore the burden of convincingly proving that the relevant date was not the filing date of the priority document.

e) Specific case of internet citations of prior art

As a rule, each party bears the burden of proof for facts which it alleges. In the specific case of internet citations of prior art cited by the EPO, the burden of proof thus lies with the EPO. If however, the EPO is satisfied that, on the balance of probabilities, an internet citation constitutes prior art, it is then up to the party to prove otherwise (ex parte cases T.2227/11, T.1589/13).

In ex parte case T.545/08 the board stated that the commercial website from which document D1 was retrieved could not be considered, at least not without further investigations, as a source generally deemed to provide reliable publication dates, such as the websites of scientific publishers. It concluded that the examining division was not entitled to consider document D1 as prior art in its first substantive communication without providing further explanations and evidence as to the document's public availability before the priority date (see also T.1961/13). Thus, the objection was not properly raised. It could not generate an obligation on the applicant's side to submit evidence against the assumed publication date in the written proceedings (see the observations on the burden of proof in T.545/08, points 12 and 13 of the Reasons, see also T.1066/13).

f) Receipt of formal documents

See at first place chapter III.S.4. "Spheres of risk and apportioning the burden of proof". R.126.EPC (notification by post) and R.127.EPC (electronic notification) lay down rules on the burden of proof in case of dispute (for the amended versions of these provisions, see CA/D 6/14 in OJ 2015, A17, and the explanatory notice in OJ 2015, A36, points 3.1 ff). On the requisite standard of proof, see also in chapter III.G.4.3.7.